DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
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STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

In the Matter of:	) ADMINISTRATIVE PER SE- .08% BAC Refusal
BRENDAN NGWANFORBI	) NOTIFICATION OF FINDINGS AND DECISION
1455 CAT TAIL DR	) CASE NUMBER: 34739340
STOCKTON, California 95204	) DRIVER LICENSE or FILE NUMBER: F7953179
[redacted]	) ARREST DATE: November 1, 2024

The suspension against your driving privilege will be reimposed and is effective February 20, 2025.

This action will remain in effect through February 19, 2026.

BRENDAN NGWANFORBI (Respondent), the following findings and determinations are a result of your hearing on January 24, 2025.

FINDINGS OF FACT

I. Lawful Contact

Initial Contact:
Respondent was contacted by Officer Meza Badge #23295 with the Alameda County California Highway Patrol on 11/01/2024 at 12:55 AM under the following circumstances:
Officer Meza observed the Respondent parked on the right shoulder of I-580, just west of Isabel Avenue, when he conducted a welfare check. The Respondent was asleep when Officer Meza knocked on the right front passenger side window of the vehicle. Officer Meza made contact with the Respondent through the open right passenger side door. Respondent was then lawfully detained. A reasonable articulable suspicion to detain Respondent was based on Officer Meza's observations of objective symptoms of intoxication and Respondent's admission to driving.

II. Lawful Arrest

Respondent was lawfully arrested by Officer Meza at 1:12 AM.

Probable Cause supporting arrest:

Officer Meza had Probable Cause to arrest Respondent based on their observations of the following:

Objective signs of intoxication observed. Officer Meza observed Slurred Speech, Red and/or Watery Eyes, and Odor of Alcohol.

Other: Respondent relayed to Officer Meza he believed he was parked in a parking lot for seven minutes prior to the officer's arrival in which Officer Meza indicated he was parked on the side of the freeway.

Field Sobriety Tests (FSTs) conducted. Respondent performed unsatisfactorily on the following FSTs: HGN (Horizontal Gaze Nystagmus), and Modified Romberg.

Other: Officer Meza observed an orange 21 and over wristband on his right wrist.

Additional factors supporting the officer's belief Respondent had been driving a motor vehicle in violation of Sections 23152, 23153, or 23154: Officer Meza smelled the strong odor of an alcoholic beverage emitting from Respondent's breath and person while speaking to him in front of the patrol vehicle.

Statutory Authority supporting arrest:

Officer Meza had statutory authority to arrest Respondent.

Officer Meza had authority to arrest Respondent under Vehicle Code section 40300.5 based on: Respondent's vehicle was parked on the side of a highway when Officer Meza conducted a welfare check. Respondent was arrested to avoid injury to himself or property damage had he been allowed to drive away based on the objective symptoms of intoxication observed by Officer Meza.

Respondent contends: that he was not under the influence of an alcoholic beverage when he pulled over, he was tired and did not want to drive. Respondent argued the officer had indicated he had detected an odor of alcohol from the passenger side of the vehicle which was highly implausible. The officer also cited "red and watery eyes," and "slurred speech," however, these subjective observations were not corroborated by any objective evidence of impairment, such as erratic or unsafe behavior. Respondent contends on the improper escalation to a DUI investigation without probable cause. Furthermore, the incident occurred immediately after a holiday, during a period of heightened law enforcement targeting alcohol-related offenses.

Determination: Officer Meza certified under penalty of perjury on the DS 367, that under the laws of the State of California, the information on all pages of the Officer's Statement are true and correct. It is presumed official duty has been regularly performed. No evidence was presented to the contrary. Officer Meza observed objective symptoms of intoxication, which gave the officer the belief Respondent may have been driving under the influence of alcohol. The officer would have been negligent in his job duties if he did not conduct an investigation. As such, the argument is unpersuasive.

III. Admonition and Refusal

Admonition:

Respondent was admonished that their driving privilege would be suspended or revoked if they refused or failed to complete a required Chemical Test to determine the alcohol content of their blood by Officer Meza.

Chemical Test Refusal:

Respondent refused to or failed to complete the required Chemical Test.

Breath Test: Respondent refused to voluntarily submit to a chemical breath test.

Blood Test: Respondent refused to voluntarily submit to a chemical blood test.

DECISION

As a result of the preceding Findings and Determination, the suspension or revocation of your driving privilege is reimposed or sustained as specified above.

Dated: February 11, 2025

D. Candelaria
D. Candelaria - Driver Safety Hearing Officer

This action is independent of any other action taken by the court or this department.

Before a driver license can be issued or returned to you after you must complete the following:

- A $125.00 reissue fee must be paid to DMV §§14904 and 14906 VC.
- You must file proof of financial responsibility as provided in §16430 VC. (See attached or reverse.)
- You must maintain proof of financial responsibility for three years.

If you drive while your driving privilege is suspended or revoked, you may be arrested and, if convicted, jailed and/or fined.

Appeal Rights

You are entitled to a departmental review of this decision. A request for the departmental review does not stay the action. The review shall be limited to an examination of these findings and determination, and any evidence admitted at the hearing. It will not include a personal interview nor a review of evidence not presented at the hearing. To have this review, you must submit your written request with $120 for any action taken pursuant to §13353 VC or §13353.2 VC to the address shown above within 15 days of the effective date of the decision.

You may request a court review of this action by filing a petition for review of the order in the court of competent jurisdiction in your county of residence within 34 days from the date shown below if service of this notice was by mail, or within 30 days if service of this notice was made personally or electronically.

CERTIFICATE OF SERVICE

☐ presented to the person named above a true copy of this document.
☐ emailed to the person named above a true copy of this document.
☑ deposited in the United States mail ☑ at the address shown above,
☐ at ,
a true copy of this document, in a sealed envelope, with postage paid, and addressed to the person as shown on this document.

I am over the age of eighteen years, an employee of the Department of Motor Vehicles at the business address as shown above in the county where the office is located, and I am not a party to the cause herein mentioned.

I certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
February 11, 2025	D. Candelaria	X D. Candelaria

Brendan Ngwanforbi
1455 Cat Tail Dr
Stockton, Ca 95204

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